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This Instrument Prepared by and Return to:
W. James Gooding III
Gilligan, Gooding & Franjola, P.A.
1531 SE 36th Avenue
Ocala, FL 34471

Recording Costs: \$61-

SECOND AMENDMENT TO DECLARATION OF COVENANTS AND RESTRICTIONS FOR AVONLEA

THIS SECOND AMENDMENT TO DECLARATION OF COVENANTS AND RESTRICTIONS FOR AVONLEA (the "Second Amendment") is made as of March 13, 2017, by Avonlea, LLC, a Florida limited liability company ("Declarant"), as the holder of in excess of seventy-five percent (75%) of the total votes of all Members¹ and as the Declarant.

WHEREAS:

- A. On or about June 20, 2007, Declarant caused to be recorded in OR Book 4822, Page 759, Public Records of Marion County, Florida, a "Declaration of Covenants and Restrictions for Avonlea" (the "Original Declaration").
- B. On or about September 10, 2008, Declarant caused to be recorded in OR Book 5094, Page 483, Public Records of Marion County, Florida, a "First Amendment to Declaration of Covenants and Restrictions for Avonlea" (the "First Amendment") pursuant to which the Original Declaration was amended as set forth therein. The First Amendment was re-recorded in OR Book 5097, Page 1742, Public Records of Marion County, Florida, for the purposes set forth in footnote 1 of the re-recorded instrument. The Original Declaration, as amended by the First Amendment, is hereafter referred to as the "Current Declaration."
- C. Declarant is the Declarant under the Declaration, and the holder of in excess of 75% of the total votes of all Members, and therefore is entitled to amend this Declaration pursuant to paragraph 7.1.1 of the Current Declaration.
- D. Declarant desires to further amend the Current Declaration as set forth herein.

NOW, THEREFORE, in consideration of the foregoing, which are incorporated herein by reference, the Current Declaration is amended as follows:

- 1. **ARB Approval.** Paragraph 5.3 of the Current Declaration is deleted in its entirety, and is replaced with paragraph 5.3 as set forth on the attached **Exhibit A**.

¹ Terms capitalized herein and not otherwise defined herein have the same meaning herein as in the Current Declaration.

2. **Dwelling Units; Generally.** Paragraph 5.5.1 of the Current Declaration is amended to read as follows:

5.5.1. Generally.

- a. All Dwelling Units on the Lot must be of conventional construction, and built on site.
- b. Mobile homes, modular homes, or homes moved from any other location are prohibited.
- c. Any Dwelling Unit erected on a Lot shall contain at least 2,300 square feet of living space and at least 1,500 square feet under roof. Living space shall mean heated and cooled space under roof exclusive of garages, whether attached or detached, heated or cooled, and exclusive of porches, decks, pools, breezeways, basements, attics, and accessory structures. In computing living space or total space under roof, the square footage of any detached structure shall not be included.
- d. The main roof shall have not less than a 6/12 pitch and the fascia shall have a minimum width of 6 inches.
- e. All roofs shall be covered with architectural shingles, tile roofing materials or metal shingles.
- f. All roof venting shall be on the rear of the main ridge of the roof.

3. **Exterior Wall Height.** Paragraph 5.5.3 of the Current Declaration is amended to read as follows:

5.5.3. Exterior Wall Height. The height for all exterior walls height shall be no less than nine feet, four inches.

4. **Stucco Exterior Permitted.** Paragraph 5.5.5 of the Current Declaration is deleted.

5. **Amendments.** Paragraph 7.1.1 of the Current Declaration is amended to read as follows:

7.1.1. This Declaration may be amended by the affirmative vote or written consent, or any combination thereof of:

- a. Until the Class B Membership ceases, 75 percent of the total votes of all Members (i.e., not just the number present at a meeting); or
- b. After the Class B Membership terminates, 60 percent of the total votes of all Members (i.e., not just the number present at a meeting).

6. **Effect on Current Declarations.** Except as expressly set forth herein, the Current Declaration, is not amended or modified. All references herein, or in the Current Declarations to "this Declaration," "this Agreement," or similar terms shall be deemed to refer to the Current Declaration as amended thereby.

IN WITNESS WHEREOF, the undersigned has executed this Second Amendment effective the day and year first above written.

Avonlea, LLC, a Florida limited liability company

By: Harvey Vandeven
Harvey Vandeven, as Manager

Jan Jockell
Witness

Jan Jockell
Print Witness Name

Lisa Tuman
Witness

Lisa Tuman
Print Witness Name

STATE OF FLORIDA
COUNTY OF MARION

The foregoing instrument was acknowledged before me this March 13, 2017, by Harvey Vandeven, as Manager of Avonlea, LLC, a Florida limited liability company, on behalf of the Company.

Monica Jones
Notary Public, State of Florida
Name: Monica Jones
(Please print or type)

Commission Number: FF171406
Commission Expires: 2/5/2019

Notary: Check one of the following:

☒ Personally known OR
☐ Produced Identification (if this box is checked, fill in blank below).
Type of Identification Produced: _____

 MONICA JONES
NOTARY PUBLIC
STATE OF FLORIDA
Comm# FF171406
Expires 2/5/2019

EXHIBIT A

ARTICLE V. ARB AND USE RESTRICTIONS

5.1. ARB Approval.

5.1.1. Composition of Architectural Review Board. The Declarant, acting in its own name, shall constitute the Architectural Review Board (referred to herein as "ARB"). At such time as Declarant in its own absolute discretion shall determine, the Association may create a committee which shall thenceforth be and constitute the ARB. In the event that any member of such committee resigns or becomes unable to serve thereon the Association, shall appoint its successor.

5.1.2. Review by ARB.

- a. In order to enhance, maintain, and preserve values of the Property and all Lots located therein, no building, fence, wall, patio, paved area, pool or pool enclosure, or other structure or improvement (including landscaping) (all of the foregoing being individually referred to as an "Improvement") shall be commenced, painted, erected, installed, planted, placed or maintained upon the Property including any Lot located therein, nor shall any exterior change, alteration, modification, addition or deletion be made to any Improvement on a Lot nor shall any awning, canopy or shutter be attached to or placed upon outside walls or roofs of buildings or other Improvements (except by Declarant), until the plans, specifications and other information (collectively the "Required Documents") required by the ARB showing the nature, kind, height, materials, color selection, and location of the Improvement shall be submitted to and approved in writing as to harmony of exterior design and location in relation to surrounding structures and topography by the ARB and until the ARB has received assurance acceptable to it that any damage to the Property as a result of such work will be repaired in a timely fashion. (The foregoing work for which approval is required is hereinafter referred to as "Proposed Work.")
- b. The ARB will review the information provided to determine harmony of exterior design, color and location of the Proposed Work set forth in the Required Documents in relation to the surrounding structures and topography. The ARB may condition its approval of Proposed Work as it deems appropriate, and may require submission of additional plans and specifications or other information prior to approving or disapproving Proposed Work.
- c. The ARB may issue guidelines setting forth procedures for the submission of Required Documents submitted for its review as it deems proper including, without limitation, floor plans, site plans, drainage plans, elevation drawings and descriptions or samples of exterior materials and colors.
- d. The ARB may publish guidelines and standards providing options for the use of material, the size of structures or other Improvements, the design of structures or other Improvements, or the location of structures or other Improvements on a lot. Prior to planning for Proposed Work that is subject to

approval under this paragraph 5.1, an Owner should contact the ARB and request copies of any published guidelines or standards.

- e. The ARB may establish fees for services under this paragraph 5.1, as set forth in paragraph 5.1.11.
- f. Upon receipt by the ARB of all Required Documents and any fee required or imposed by the ARB, the ARB shall have thirty (30) days after delivery to approve or reject the Proposed Work, and if not approved in such thirty (30) day period, the Proposed Work shall be deemed rejected.
- g. The ARB's approval or disapproval as required in these covenants shall be in writing. All changes and alterations shall be subject to all applicable permit requirements and all applicable governmental laws, statutes, ordinances, rules, regulations, orders and decrees.

5.1.3. Liability. Neither the ARB nor any member thereof shall be liable to the Association, any Owner or to any other party, for any damage or loss suffered or claimed on account of: (a) the approval or disapproval of any Proposed Work; (b) the construction or performance of any work, whether or not pursuant to an approved Proposed Work; or (c) the development of any Lot, whether or not the facts therein are correct. This provision shall not be construed to relieve the ARB or any member thereof from individual liability for actions intentionally committed or conducted in bad faith.

5.1.4. Approval Not to be Construed as Waiver. The approval by the ARB of any Proposed Work or for any Proposed Work done or proposed, or in connection with any other matter requiring the approval and consent of the ARB, shall not be deemed to constitute a waiver of any right to withhold approval or consent as to any similar Proposed Work whatsoever subsequently or additionally submitted for approval or consent.

5.1.5. Architectural Review Board Expenses. The members of the ARB shall receive no compensation for services rendered, other than reimbursement for expenses incurred by them in the performance of their duties hereunder.

5.1.6. ARB Representatives. The Association may retain third party professionals, such as architects or contractors, to perform the duties of the ARB hereunder, and may agree to compensate them for such services. All references in this paragraph 5.1 to the ARB shall be deemed to include references to such persons retained by the Association.

5.1.7. Inspection by Architectural Review Board. Inspection of work and correction of defects therein shall proceed as follows:

- a. Upon completion of any Proposed Work for which approval is required under this Article, the Owner shall give written notice of completion to the ARB.
- b. Within thirty days after such notice, the ARB may inspect such Proposed Work. If the ARB finds that such work has not been done in substantial

compliance with the approved Required Documents, it shall notify the Owner in writing of such noncompliance within such thirty-day period, specifying the particulars of noncompliance. The thirty-day period shall not commence to run until the ARB receives a notice of completion from the Owner. The ARB may, in its discretion, inspect the Proposed Work while the same is being made or constructed or upon completion and notify the Owner of noncompliance even if the Owner has not given the ARB notice of completion.

- c. If a noncompliance exists, as determined in the sole and absolute discretion of the ARB, the ARB shall notify the Owner to remedy or remove the same within a period of not more than thirty days from the date of delivery to such Owner of notice of the ARB's determination of noncompliance. The Owner shall be obligated to comply with such notice, and if the Owner does not comply with such notice within such period the Association, at the option and direction of the ARB, may, in addition to all other remedies available at law or equity, remove the noncomplying Proposed Work or remedy the noncompliance and the Owner shall reimburse the Association after delivery by Association to the Owner of written notice thereof for all expenses incurred in connection therewith. If such expenses are not paid by the Owner to the Association within fifteen days after such notice, the Association may levy an Enforcement Assessment against such Owner for reimbursement, which Enforcement Assessment shall constitute a lien on the Owner's Lot and shall be collectible as set forth in this Declaration.
- d. If for any reason the ARB fails to notify the Owner of any noncompliance within thirty days after receipt of such written notice of completion from the Owner, the Proposed Work shall be deemed to have been made in accordance with the Required Documents.
- e. If an Owner does not obtain the approval of the ARB as provided herein, and proceeds to make perform any Proposed Work on a Lot which require ARB approval, the ARB upon actual discovery of the foregoing may, approve them as being in accordance with the requirements for approval, or the ARB may notify the Owner in writing of the noncompliance of the Proposed Work, in which case the ARB shall then proceed as is provided in paragraph 5.1.7.c.

- 5.1.8. Variances. The ARB may authorize variances from compliance with the architectural provisions, and all other restrictions, of this Declaration when circumstances such as: topography; natural obstructions; hardship; aesthetic or environmental considerations; lack of impact on other Owners; or governmental regulation require. Such variances must be evidenced in writing. If such variances are granted in writing and approved in writing by the ARB, no violation of the covenants, conditions and restrictions contained in this Declaration shall be deemed to have occurred with respect to the matters for which the variances were granted. The granting of such a variance shall not, however, operate to waive any of the terms and provisions of this Declaration for any purpose except as to the particular property and particular provisions hereof covered by the variances, nor shall it affect in any way the Owner's obligation to comply with all governmental laws and regulations affecting its use of the

premises including, but not limited to, zoning ordinances and set-back requirements or requirements imposed by any governmental or municipal authority, nor shall it be deemed to have to obtain a variance from other architectural committees having jurisdiction.

- 5.1.9. Exemption of Declarant. The Declarant shall be exempt from the provisions of this paragraph 5.1 and all subparts thereof with respect to any Proposed Work which Declarant determines to make in the Property and this exemption shall apply whether such Proposed Work is or to Lots, the Common Areas, roads, or any other areas of the Property. Any Institutional First Mortgagee advancing funds to the Declarant for the construction of any such Proposed Work shall succeed to the exemption of Declarant set forth herein for the purpose of completing the Proposed Work funded.
- 5.1.10. Nonconforming Structures. If there shall be a material deviation from the approved Required Documents in the completed Proposed Work, such Proposed Work shall be in violation of this paragraph 5.1 to the same extent as if erected without prior approval of the ARB. The Association, ARB or any Owner may maintain an action at law or in equity for the removal or correction of the non-conforming Proposed Work and, if successful, shall recover from the Owner in violation all costs, expenses and fees incurred in the prosecution thereof.
- 5.1.11. Fees.
- a. The ARB may establish fees for services under this paragraph 5.1 including, without limitation, as follows:
 - 1). The Association may establish a fee for ARB review under paragraph 5.1.2 and inspection under paragraph 5.1.6. The ARB shall use good faith efforts to establish a fixed fee for each Proposed Work to include such review and inspection.
 - 2). The ARB may establish additional fees for additional services rendered by ARB or its authorized representative in performing the following: consulting with an Owner or its representatives concerning any Proposed Work that was previously rejected; further reviews of any Proposed Work that was previously rejected; or inspections of any Proposed Work that was previously rejected. Such fees may be on an hourly basis to reimburse the ARB or Association for amounts paid pursuant to paragraph 5.1.6.
 - b. An Owner shall be required to pay all fees established under this paragraph 5.1.11 as and when required by the ARB. Without limiting the foregoing, any fees due under paragraph 5.1.11.a.1) shall be paid at or prior to the time that all Required Documents are delivered to the ARB.

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